

		Defendant Alec Sergio Martin’s motion to vacate the 2/2/26 default judgment is denied. Code Civ. Proc. § 473(b) states the following, in pertinent part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Similar to the motion filed by Haydee Docasar M.D., P.C., Defendant Martin’s motion is also untimely. It was filed in May of 2026. Default was entered on 10/10/24. (ROA 30.) While opposed, no proof of service was filed, and the motion was not served. (Code Civ. Proc., § 1005(b; CRC, Rule 3.1300(a).) Plaintiff’s counsel states they obtained the motion online and that Defendant has refused their requests to serve Plaintiff with the motion. (Andonian Decl., ¶¶ 16-17 & Ex. H.) Defendant Martin declares that he was told that his signature on the guarantee did not actually impose any personal liability, among other things, excusing him from responding and seeking timely relief from default. (Martin Decl., ¶¶ 3-14.) This is directly contradictory to the language in the guaranty. Moreover, this does not demonstrate excusable neglect, especially given Plaintiff’s evidence that Martin knew of the default by March 2025, and specifically that Plaintiff would not stipulate to set it aside on 3/31/25. (Andonian Decl., ¶¶ 10-11 & Ex. F.) Martin waited more than a year to file his motion. Self-represented litigants must follow the same procedural rules as attorneys. (See <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1247; see also <i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation”].) Accordingly, the Court also denies Defendant Alec Sergio Martin’s motion. The clerk shall give notice.
104	2024-01395404 Gil vs. Volkswagen Group of America, Inc.	1. Motion for Attorneys’ Fees 2. Order to Show Cause re: Dismissal on Settled Case <u>Motion for Attorney Fees</u> Plaintiff Federico Gil’s motion for attorneys’ fees is granted. Plaintiff is awarded reasonable attorneys’ fees in the amount of \$23,245.50, against Defendant Volkswagen Group of America, Inc. Here, the Court determines that the hourly rates of Plaintiff’s attorneys, which range from \$400 to \$595, are reasonable and within the prevailing rates in the community for similar work. The Court declines to impose a rate of \$400 across-the-board as suggested by Defendant.

		With respect to the reasonableness of the hours, the Court also finds little support for Defendant’s contention that Plaintiff’s entries appear to be impermissibly duplicative or inconsistent with counsel’s claims, or unreasonably increased by Plaintiff’s counsel’s “gamesmanship.” However, after reviewing the time entries, the Court agrees there was a limited amount of duplication and inefficiency created by having multiple attorneys work on discrete tasks. Consequently, a reduction of \$1,187 is warranted. After this reduction, the Court finds Plaintiff reasonably incurred \$23,245.50 in attorneys’ fees. The Court declines to award Plaintiff a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1138.) The Court is not persuaded that Plaintiff’s requested enhancement is warranted for the prosecution of this action. For the foregoing reasons, the Court awards Plaintiff a total of \$23,245.50 in reasonable attorneys’ fees. <u>Order to Show Cause re: Dismissal on Settled Case</u> Unless counsel for either party appears at the hearing and objects, the Court will dismiss this matter without prejudice. Plaintiff shall give notice of each of the foregoing rulings.
106	2025-01504753 Schneider-Kidan vs. Estate of Leonard Tierney	1. Demurrer to Amended Complaint 2. Motion for Leave to File Amended Complaint 3. Motion for Leave to Intervene 4. Motion to Quash Service of Summons 5. Motion to Quash Service of Summons 6. Motion to Quash Service of Summons 7. Motion to Quash Service of Summons 8. Case Management Conference Plaintiff Tracy Lynn Schneider-Kidan’s motion for leave to file her proposed second amended complaint (“SAC”) is granted. [ROA #262.] Defendant Partners-Personnel Management, Inc.’s demurrer to Plaintiff’s first amended complaint (“FAC”) is moot. [ROA #98.] Proposed Intervenor Adam Kidan’s motion to intervene is denied. [ROA #190.] Defendant Madison Resource Funding, LLC’s motion to quash service of summons and complaint on it is granted. [ROA #84.] Defendant Tyler Tierney’s motion to quash service of summons and complaint on him is granted. [ROA #103.] The motion of defendant Estate of Leonard Tierney, by and through executory Mary Teirney, to quash service of summons and complaint is continued to 11/16/26. [ROA #157.] Defendant NESC Staffing, LLC’s motion to quash service is granted. [ROA #170.] Defendant Chartwell’s request for judicial notice are granted. [ROA ## 281, 283.] Facts